

		and it appears to the Court that the latter would be the most efficacious for all involved. Claimant shall separately file its Complaint in Intervention within 10 days and serve a copy of the Court's Minute Order in compliance with CCP §387(e).
5	Sharma vs. A.A. Construction 22-01274347	Motion to Set Aside/Vacate Default and Judgment The court finds that Plaintiff did not effectuate proper service of the original Complaint on Defendant. However, the First Amended Complaint was properly served on Defendant Jehovany by personal service on January 11, 2024. Defendant admits to receiving the First Amended Complaint and testified that this was the first time that he learned of the pending lawsuit. The court further finds that Defendant Jehovany was diligent in seeking relief after learning of the lawsuit. First, Defendant Jehovany attended the first and only hearing that took place after he was served with the First Amended Complaint. This hearing took place on March 11, 2024. (ROA 118.) Defendant Jehovany also testified that after learning of the First Amended Complaint he sought legal representation and thereafter filed this motion. Again, this motion was filed just one week after default judgment was entered. Given Defendant's diligence in defending the case once he learned of the case, the court finds Defendant's failure to timely file an answer excusable under the circumstances. (Austin v. Los Angeles Unified School Dist. (2016) 244 Cal.App.4th 918, 929 ["Within the context of section 473(b) neglect is excusable if a reasonably prudent person under similar circumstances might have made the same error."].) Given the above and the well-established case law that favors resolution of cases on their merits, the Motion is GRANTED.

		Defendant Jehovany Barraza shall file the proposed Answer attached as Exhibit B to his declaration within 10 court days of the hearing. Defendant Jehovany Barraza to give notice.
7	Herrington vs. Hyundai Motor America 24-01376338	Motion to Compel Arbitration The Motion to Compel Arbitration brought by Defendant, Genesis Motor America, LLC (“GMA”) is DENIED. GMA argues that the Federal Arbitration Act (“FAA”) applies. Regardless of whether the FAA applies, “ ‘[s]tate law determines whether a non-signatory to an agreement containing an arbitration clause may compel arbitration.’ [Citations.]” (Yeh v. Superior Court of Contra Costa County (2023) 95 Cal.App.5th 264, 270.) Both the FAA and the California Arbitration Act require the existence of a valid arbitration agreement, before arbitration can be compelled. (See 9 U.S.C. §2 and C.C.P. §1281.2). “Under ‘both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate.’ [Citation].” (Cruise v. Kroger Co. (2015) 233 Cal.App.4th 390, 396, emphasis in original (“Cruise”).) The court is to determine whether a valid arbitration agreement exists, and if so, whether the agreement encompasses the dispute at issue. (Omar v. Ralphs Grocery Co. (2004) 118 Cal.App.4th 955, 960-961, citing Howsam v. Dean Witter Reynolds, Inc. (2002) 537 U.S. 79, 84; Lifescan, Inc. v. Premier Diabetic Servs., Inc. (9th Cir. 2004) 363 F.3d 1010, 1012.) Parties moving to compel arbitration “may meet their initial burden to show an agreement to arbitrate by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature.” (Espejo v.